

Langridge v Levy *(1837) 2 M & W 519* *370*

LANGRIDGE V LEVY

Equivalent Citations:(1837) 2 M and W 519, [1837] EngR 156, (1837) 150 ER 863

FACTS:

A gun was given to the Plaintiff [Langridge] by his father. The rifle was purchased by his father from the Defendant [Levy]. The Plaintiff's father was told by the Defendant that

the pistol was of high quality. The Defendant was informed that the gun was for the Plaintiff's use only. The rifle was malfunctioning, and it exploded, ripping the son's hand off.

ISSUES:

Is it possible to owe a duty of care to other parties?

PLAINTIFF'S ARGUMENTS:

Even if the two parties did not have a contract, the law imposed on the Defendant a duty of reasonable care to guarantee that his product would not hurt the Plaintiff. This is especially true given the Defendant was aware that the pistol was defective, that it was intended for the son's use, and that the commodity (the gun) is a dangerous object.

RESPONDENTS ARGUMENTS:

The rifle was given unloaded to the Plaintiff's father. The instrument was not genuinely harmful at the time. The harm caused must be a direct result of the Defendant's actions. There was no agreement between the Defendant and the Plaintiff in this case. If the Plaintiff's responsibility was expanded (i.e., beyond the customary privity of contract), an endless number of people might sue (open the floodgates).

JUDGMENT:

Because there was no privity between the plaintiff and the defendant, the court concluded that the plaintiff could not sue in contract. The defendant's claim that imposing such a duty of care would open the floodgates and allow for indefinite and infinite liability is rejected in favour of the plaintiff's argument. However, there was a misrepresentation of the gun's safety, which is fraud. The Defendant was aware that the pistol would be utilised by the Plaintiff, so the damage from the fraud was not remote and substantial, but plainly predictable. For this reason, he sold the rifle. As a result, the Plaintiff is permitted to sue for fraud. On the basis of deception, the Plaintiff prevails.

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